

The Claremont City Council held a meeting on Wednesday, May 27, 2020, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:07 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Chambers – Councilors Sweetser and Stone

At-Large Councilor Abigail Kier – Home – Alone

At-Large Councilor Erica Sweetser – Chambers – Councilors O'Hearne and Stone

Assistant Mayor Allen Damren – Home – Alone

Mayor Charlene Lovett – Home - Alone

At-Large Councilor Debora Matteau – Home – Alone

At-Large Councilor Nicholas Koloski – Restaurant – Alone

Ward II Councilor James Contois – Home – Alone

Ward III Councilor Jonathan Stone – Chambers – Councilors O'Hearne and Sweetser

Also present:

Edward Morris, City Manager

AGENDA CHANGES

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

There was a discussion about holding a Non-Public Session using a conference call. Mr. Morris had set up a conference call number and password, and the only people he had given the information to were the nine Councilors and himself.

Councilors expressed concern about the privacy of holding that type of meeting. Some preferred to have all participants in the same room and to move the Non-Public Session to a larger room in order to maintain social distancing. Some expressed concern about all participants wearing masks.

Mr. O’Hearne agreed to discuss the details of scheduling another Non-Public Session under Future Agenda Items.

At 6:21 p.m., Mayor Lovett called a break until 7:05 p.m.

MAYOR’S NOTES

7:05 p.m. Council returned from break.

Ms. Sweetser said today the U.S. deaths related to COVID-19 reached 100,000. She asked for a moment of silence to respect them.

At 7:06 p.m. Mayor Lovett said that Mr. Koloski didn’t return because he had to respond to a fire.

Mayor Lovett talked about Memorial Day events. She thanked Public Works for making sure the cemeteries were cleaned up for the holiday.

Mayor Lovett said that Common Man and Rotary Club of NH have teamed up to create a maskupnh.com initiative to offer free masks to the public. Information will be put out if Claremont Sugar River Rotary decides to participate. Conservation Commission completed an Earth Day clean-up project, collecting 10 bags of trash. Congratulations to RVCC and high school graduates of 2020.

Mr. Damren publicly thanked the Sullivan County Health Care Nursing Home for what they do for the residents, including organizing a parade (done with social distancing).

CITY MANAGER’S REPORT

- **Census** – The City of Claremont continues to ask residents to complete the 2020 Census located at 2020census.gov. As of this week, Claremont has a 58.8% self-response rate, compared with 58.4% for the state.
- While the Council was on break, the Fire Department was called out to a fifth fire in the last month. There is no common thread. He wanted to have Fire Chief Bryan Burr talk about fire safety today, but it will have to be scheduled for another time. The Fire Department has a smoke detector program for those in need.
- **Economic Analysis** – Some of you may remember the Strong Towns presentation last year. On a follow-up to that presentation, New Hampshire Housing is working with Joe

Minicozzi/Urban 3 to undertake a detailed analysis of the municipal fiscal impacts of different types of development in 15 communities selected from different regions in the state. Claremont has been selected as one of the communities to participate in this study. Urban 3 will conduct preliminary research which will entail conducting an economic analysis of the community and then develop an economic 3D model that will illustrate the economic effect of land uses. Urban3 Principal, Joe Minicozzi, will make several presentations in different locations across the state during the week of October 12-16. The City will be provided with the results of Urban 3's analysis of Claremont.

- **Washington and Bowen** – The Washington and Bowen Street Project is scheduled to begin on June 1, 2020. Signs have been placed this week along Washington Street to alert traffic that this project will be starting soon. The majority of the work should be done in 4-5 weeks. The rest will take until October.
- **Comcast Agreement** – Council was concerned about the 10-year agreement with Comcast. After discussion with Comcast, there is a tentative agreement to keep the same agreement with an eight-year term. It should come back to the Council on June 10th.
- **Broad Street Paving** – Broad Street is scheduled to be paved beginning June 6th. Pleasant Street Truck Route Study includes the Glidden and Broad Street intersection. Because of this possible plan, we have changed our paving plans and will be skipping the section of Broad Street that may be affected by this possible project.
- **Tax Bills** – Tax bills will be mailed on Tuesday, May 26th, and will be due July 1, 2020. The Board of Assessors made the decision at their May 13, 2020, meeting to create a simplified interest abatement application process for people and businesses that can show a COVID-19 hardship.
- **Opera House Roof Project and HVAC** – The Opera House HVAC Project roof top units have been ordered, but have a 12-week production time. We expect the units to be installed in August, and the work will be coordinated with the Roofing Project so both projects will be completed back-to-back in an effort to decrease costs and increase the efficiency of the jobs. We are also looking at a couple other rooftop repairs that may be completed at the same time in an effort to reduce costs.
- The May 2nd Household Hazardous Waste Collection was cancelled; the next one is scheduled for June 6 at the Claremont Highway Garage.
- **July 4th Fireworks** - Will not be a big gathering at Monadnock Park. The fireworks company and Magee Toyota are okay if we have it on July 4th or if we have to move it to a later date. We will do what's in the best interest of the City for public health.

Ms. Matteau asked about one member of the Board of Assessors resigning, leaving only one member. Mr. Morris said yes and that he'll reach out to Mr. Kennedy to see if he will reconsider his resignation.

CITIZEN'S FORUM

Reb MacKenzie, Ward 2, wants the Council to talk about safety measures for citizens in this pandemic. She is worried about people congregating and not wearing masks, or keeping a safe distance, and about the increase in cases of COVID-19. She looks to the Council to be leaders of the community and would appreciate the Council coming together and working as one body. She encouraged Councilors to look to work for the common good.

Walt Stapleton, Ward 3 resident and NH House Representative Ward 3, said in 2019, the Policy Committee was discussing holiday Christmas displays; he asked what the outcome was. Mr. Morris said the last guidance from the attorney was to work through the last holiday season and then the Council would decide whether or not to pursue an ordinance. He doesn't think the Council has finished the discussion. Mayor Lovett said it could be discussed during Future Agenda Items.

Matt Dean, Ward 2, regarding telling people to wear masks, he supports a proclamation that repeats what medical experts are saying.

OLD BUSINESS

COVID-19 Update

Mr. Morris said as of yesterday, there were 34 new cases; statewide 4,286; Claremont Middle School tested 38; there are 3 active cases in Claremont. Moody Park is open to vehicle traffic. Also, the tennis courts are open with some restrictions. City operations are slowly opening and expanding. The Library will offer a little more interaction next week. No one will be able to walk through the stacks, yet. Central Collections opened today. We're asking all patrons to wear masks. He has put out the word that anytime employees are in a public area (during working hours) we are wearing masks. If you're in your own office space, no mask is needed. We're looking at guidelines for the Community Center. We're not ready to open. The Governor has not allowed the gym portion to open, yet.

At 7:33 p.m. Mr. Koloski returned.

Mr. Stone asked how many tests have been given since testing began in Claremont. Mr. Morris said he will ask. Mayor Lovett said the capacity is 125 tests/per day. They are usually testing less than half that number. You don't need to have underlying conditions to be tested; anyone can get tested.

a. Discussion of Council Position on Public Use of Face Masks

Mayor Lovett reviewed information from the Governor as of May 14. The Governor affirmed that employees who deal face-to-face with customers are required to wear masks. Those employees without direct interaction are not required to do so. Stores may mandate people

visiting their business wear masks. There is no state law or emergency order mandating that individuals in public places wear masks. Any municipality has the authority to enact more restrictive regulations. However, the municipality should consider how that would be enforced.

Mayor Lovett read a letter from Michael Demars, Ward 3 resident and owner of CCI Managed Services, stating that he feels that wearing masks should be a personal choice.

Ms. Kier works at Dartmouth Hitchcock Medical Center. She showed a PowerPoint about why it is beneficial to wear masks. A significant portion of individuals are asymptomatic. COVID-19 is spread through droplets of fluid when you speak. Wearing a face covering helps protect others from you, not you from others. She requested that the Claremont City council create, and back, a resolution urging local businesses to require masks inside their establishments. She clarified that this would not be a mandate or an ordinance that would require enforcement or fines. They are starting to see COVID-19 related inflammation in children.

Mr. Contois said everyone needs to be responsible. He approved of the PowerPoint message.

Ms. Matteau approved of the PowerPoint. She said it is common courtesy for everyone to wear a mask while going into a store.

Mr. Koloski said he believes in wearing a mask and that he wears one in public. When his restaurant opens, he will have a supply of masks for those who want them. He talked about enforcement and that it will be controversial.

Ms. Sweetser said she is in favor of wearing a mask when around other people. She is also concerned about enforcement.

Ms. Matteau thinks the Council should strongly urge businesses to declare, "no mask, no service."

Mr. Stone thinks this is unnecessary government overreach. He thinks Council should take no action.

Mr. O'Hearne said he carries a mask and wears it when in a store. He doesn't see how this would be enforceable.

Sam Killay, Ward 3, said he is in favor of the City passing a resolution, not an order, mandate or rule. It is a matter of people respecting each other.

Walt Stapleton, Ward 3, recommended the Council take up a resolution.

Reb MacKenzie, Ward 2, said she is hoping for a resolution that would send a strong message that we believe in protecting one another.

Matt Mooshian, Ward 2, supports a resolution. There should be less talk about enforcement and more about increasing access to masks.

Mayor Lovett said a majority of Councilors would like to see a resolution drafted to be included in the packet.

Ordinance 574 Amending Non-Union Employee Classification Plan – Second Reading

The purpose of this proposed change is to replace the current Health Service Inspector position with that of the Deputy Building Inspector & Health Officer position. No grade or salary ranges will be impacted by this amendment as the new position will simply assume that of the former Health Service Inspector's pay schedule (Grade 8 of the Non-Union Employee Pay Schedule – Attachment C). The current maximum salary for a Grade 8 employee is \$56,829 and the minimum salary is \$37,362.60.

The amendment is intended to broaden interest in this position by expanding the scope of potential candidates for same. The Health Service Inspector position has been vacant for approximately 15 years and is somewhat limited in terms of its duties, the title and responsibilities for this new position are more in line with the needs of the City. With the change in title and description of duties, the hope is that more individuals will be enticed to apply for this position.

Enactment of this Ordinance will amend the City of Claremont Merit Plan accordingly and institute a full job description for the position of Deputy Building Inspector & Heath Officer. This change is requested by the City Manager.

Mr. Morris said at the last meeting, Mr. O'Hearne had asked for the cross reference, which was accidently omitted. It was included in this packet. He talked to Attorney Tanguay about whether or not this had to go back to first reading. Mr. Tanguay said since it didn't substantively change, it could go on to second reading.

A motion was made by Mr. O'Hearne and seconded by Ms. Kier to suspend Council Rules to forego the reading of the ordinance.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-1.

A motion was made by Ms. Kier and seconded by Ms. Matteau to adopt Ordinance 574 Amending Non-Union Employee Classification Plan and send to third reading.

No discussion.

Roll call vote:

O’Hearne - no

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 7-2.

Resolution 2020-27 Connecticut River Conservancy Request Regarding Erosion – Public Hearing

WHEREAS, the peaking operations of Wilder, Bellows Falls and Vernon dams have been causing daily fluctuations of, on average, 2-3 feet every day in the impoundments behind the dams for 70 years resulting in loss of land for landowners in VT and NH and degradation of water quality and habitat of the river for decades; and

WHEREAS, in the late 1970s, during the last relicensing process, the Army Corps of Engineers (ACOE) conducted an erosion study on the project area; and FERC issued the last licenses in early 1979 just months before the ACOE completed their study in November of that year; and the ACOE study clearly states that pool level fluctuations are the second most important causative factor for erosion in the project areas; and

WHEREAS, the erosion study completed for the current relicensing by Great River Hydro, the current owner of these three projects did not look at the effect of pool level changes on erosion, instead, focusing only on potential erosion due to velocity along the bank edge that would be typical for a natural river system; and the Connecticut River in the project area does not function as a natural river, instead functioning as a hybrid river with a series of impoundments controlled by the dams; and

WHEREAS, many towns and landowners up and down the river have used millions of dollars in public and private money to attempt to stabilize and restore their streambanks to protect property and infrastructure over the past 70 years.

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby formally requests that the Federal Energy Regulatory Commission

require, via license article, the current and any subsequent owners of the Wilder, Bellows Falls and Vernon Dams to modify current dam operations to minimize peaking; provide for ongoing monitoring; develop a shoreline adaptive management plan; and commit funding for riverbank restoration and/or property owner compensation to reimburse towns and landowners for any and all damages resulting from the deterioration of the riverbank.

Kathy Urffer, River Steward for Connecticut River Conservancy, said there was a typo in the initial resolution, fourth Whereas...river has used millions instead of billions.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt Resolution 2020-27 Connecticut River Conservancy Request Regarding Erosion.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing.

Walt Stapleton, Ward 3, said he goes out into the woods a lot and agreed we should support programs to prevent bank erosion and to stabilize the riverbanks.

Mayor Lovett closed the public hearing.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Budget Discussion

Mayor Lovett said this is to determine goals Council wants to achieve for this upcoming budget year. Previously, there was consensus to address neighborhood blight and continuation of revitalization of downtown Claremont.

Councilors would like to see: infrastructure improvements; road paving; because of COVID-19, people are struggling, so level funding; find ways to help people who are having a hard time paying water bills; it would be helpful to know how much revenue is received from the residential sector versus the business sector.

There was discussion, and Council agreed, to schedule the public hearing on the budget on June 24.

NEW BUSINESS

Resolution 2020-26 Airport Apron Phase II – Public Hearing

WHEREAS the City is undertaking an Airport Apron Project at the Claremont Municipal Airport (the "Airport"); and

WHEREAS the City of Claremont, NH, has been approved for funding for the Airport Apron Project. SBG-02-14-2020 Phase II Grant (Construction Drainage Improvements) for said project in the amount of \$700,000.00; and

WHEREAS the grant ineligible portion of the project is set at \$107,523.50; and

WHEREAS the City would like to now accept and expend said funds;

NOW THEREFORE BE IT RESOLVED to raise, appropriate and expend the sum of \$807,523.50, \$700,000.00 which is to come from the Federal Aviation Administration and \$107,523.50 to be taken from the Airport Reserve Account (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mr. Morris said the majority of the project is being funded by the FAA, however, not the area in front of the apron, so we need that funding to come from the Airport Reserve account.

Fire Chief Bryan Burr said this is phase 2 of a two-phase project. He's hoping the project will start in July and the duration is estimated for 30-45 days. The airport will be closed at that time. The 3,000 square yard portion of the project that is ineligible for the grant has to be funded by the airport. Through the CARES Act, we will receive reimbursement of \$30,000 for fuel that had been purchased in January, so essentially, the out-of-pocket expense will be \$77,523.50. While the airport is closed, he expects the only loss to be the sale of fuel. There has been communication with the hangar owner and they are okay with the airport closure.

A motion was made by Ms. Kier and seconded by Mr. Koloski to adopt Resolution 2020-26 Airport Apron Phase II.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Capital Improvements Program Presentation

Mr. Morris said this Capital Improvement Plan (CIP) was approved and brought forth by the Claremont Planning Board.

Nancy Merrill, Planning and Development Director, said NH statute gives the Planning Board authority to do the Master Plan. This CIP comes from the Master Plan. She explained the process.

Rick Wahrlich, Planning Board Chair, said he was very comfortable with this process. He said that Finance Director Mary Walter brought up in the last few years that there is no funding behind the CIP. The Planning Board is responsible to make sure that what is in the CIP is in the spirit of the Master Plan, not about the funding.

Mr. Morris explained that not many of the CIP items were in this year's budget. At the end of the year, if there is money available, then we may be able to get smaller projects done; for the bigger ones, we look toward grants. He said moving forward creating a capital reserve to fund these projects would be a good idea. He will talk with Ms. Walter and Ms. Merrill to see if we can change the time of year this gets presented in order to look at it at the beginning of the budget process.

Ms. Merrill said sometimes when the Planning Board does this, they recognize the financial reality. When her office applies for grants, they are asked if things have been a part of a public discussion and been prioritized, so even if the City can't afford to fund it, it's important to have for the grants.

There was a brief discussion about a capital reserve. Mr. Damren proposed that the Finance Committee should look at this. Council agreed.

**A motion was made by Mr. Damren and seconded by Ms. Kier that
WHEREAS the Claremont Planning Board, pursuant to RSA 674:7, has prepared and approved a Capital Improvement Plan for fiscal years 2021-2026, and now desires to submit its recommendations to the Mayor and City Council for consideration as part of the**

Council's annual budget review process, the Claremont City Council hereby accepts the fiscal year 2021-2026 Capital Improvement Plan as approved on April 13, 2020 by the Claremont Planning Board. The Claremont City Council hereby authorizes the City Manager or his designees to incorporate the recommendations contained in the fiscal year 2021-2026 Capital Improvement Plan into the annual budget review process and authorizes the Claremont Planning Board to provide updates to the Capital Improvement Plan on an annual basis to maintain and improve the City's credit rating and fiscal health.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Up on the Hill Conservation Area

Mr. Morris said the City was notified that the Upper Valley Land Trust (UVLT) was starting to build a parking lot at the end of Bible Hill Road. The Planning and Development Department has looked into that and since it is a Class VI road, it needs to come to the Council before they can move forward.

Ms. Merrill said the UVLT would like to use the trail for nonmotorized vehicles. Some trails already exist. Currently, people can park in Charlestown and go into the area that way, but they want to make it easier to go from the Claremont side. The City needs to state that it will not maintain the road. This is a small disturbance and as a Class VI road, Council approval is needed.

Mr. Koloski said he had received a couple of letters and calls in opposition. Neighbors feel this is not a small disturbance. There is a question of who will enforce when there is illegal activity in the area.

Mr. Damren said he also received letters and calls. Neighbors were not notified. He asked how many vehicles can fit in the parking area and who takes responsibility for policing the area.

A motion was made by Mr. Stone and seconded by Mr. Damren to table Up on the Hill Conservation Area to June 24.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - no

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-1.

Ms. Merrill said someone from the Land Trust should be at that meeting.

Ms. Matteau asked about needing site plan approval. Ms. Merrill said she didn't see this as needing site plan approval.

Mr. O'Hearne said based on emails and phone calls that have been received, activity is going on up there. Ms. Merrill said her office has stopped the activity up there.

Mr. Stone asked if any permits had been issued for the work that was done so far. Ms. Merrill said no. He asked if any abutters had been notified. Ms. Merrill said no.

Green Mountain Power

Green Mountain Power owns an easement area across Lot 187, Map 5, running just south of the former Wheelabrator plant. The City is the underlying owner of the land and the road.

Under the terms of a settlement agreement with Wheelabrator in 2007, the City granted Wheelabrator easement rights on the existing access road running from Grissom Lane to the facility with unfettered access assured. In the same agreement, the City acknowledged that future development could occur on the land adjacent to the site and to the north that might require the access road become a Class V public way. Under the terms of the agreement, the City would become responsible for maintaining the road if, and when, it was dedicated as a Class V public way.

Green Mountain Power has requested permission to create an entrance and access driveway onto its easement area from the existing access road. The work would include building a culvert. Because this is City-owned property, the Council will need to permit this work. The City will be leasing this property to Steel Mill Solar but the access driveway will be on the existing power easement. The City Council should also consider whether to affirm that the City will not undertake any improvement or maintenance on the access road itself as a result of this decision.

Ms. Merrill said Green Mountain Power (GMP) owns the easement and they want to create a driveway into their property and they will create a culvert which requires Council approval. She

told GMP that sometime in the future, that road will be graveled in as part of the negotiation with the solar company.

A motion was made by Mr. Contois and seconded by Mr. Damren to authorize the City Manager or his designee to enter into an agreement for Green Mountain Power to install a 24' culvert on City property Map 187, Lot 5 and create an access road in the Green Mountain Power easement area. The City will not undertake any improvement or maintenance of the entrance road as a result of the project. If the entrance road is widened by the City or its tenant in the future, Green Mountain Power will pay for any costs associated with reconfiguring its culvert and access area, or restore it to current condition.

Roll call vote:

O'Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said she and Mr. Morris will be on a call with the Governor tomorrow, so if any Councilors had concerns they wanted addressed, to let her know prior to 11 a.m.

Mayor Lovett said the meeting this Saturday will be held remotely for the budget discussion.

Ms. Matteau requested the City Manager follow-up regarding Union Block tenants leaving lawn chairs on the sidewalk. She would like to see the Police enforce the loitering ordinance. Mr. Morris said he talked to Building Inspector Steve Coombs and he has talked to the landlord about the tenants leaving the chairs out at night. He will send Council more information about that and about the Shell Station on Washington Street that someone had asked about.

Mr. Koloski would like to be sure all the neighbors of the Up on the Hill Conservation Area are able to participate in the Council meeting. Not all of them have internet access. Mr. Morris said they don't need internet. They can call in.

Mr. Stone would like to discuss getting back to public meetings and how to phase that in. He would like to discuss it at the next meeting under COVID-19 Update.

Mr. Damren asked about rescheduling the Non-Public Session that didn't happen tonight. Mr. O'Hearne said he would still like to have it, but will need to see what accommodations the City

Manager can come up. Mayor Lovett suggested that could be discussed at the June 10th meeting under COVID-19 Update. Mr. O’Hearne agreed.

Ms. Sweetser has heard two different opinions from restaurants that either the City is unwilling to work with them, or that restaurants are unwilling to adjust. She said she knows Ms. Merrill has had meetings with local restaurant owners. She would like an update on how that is going. Mayor Lovett said that can be done under COVID-19.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:36 p.m., a motion was made by Mr. Damren and seconded by Ms. Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Kier - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council